



A COMMUNITY OF CHOICE

PLANNING AND DEVELOPMENT SERVICES

BUILDING AND DEVELOPMENT OFFICE

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MEMO

To: Mayor Kaysen and Members of City Council
From: Jim Flesher, Planner II
Subject: Agenda Item #7.b), Overland Trails Annexation, Annexation Criteria
Date: April 11, 2011

Attached please find the eligibility data for the above agenda item revised to include an additional item under number 2 as letter "c" relating to a proposed water transmission line.

pc: City Attorney
City Clerk
File

WYO. STAT. § 15-1-402 (A)
ELIGIBILITY – PUBLIC HEARING: OVERLAND TRAILS ANNEXATION

ANNEXATION ELIGIBILITY DATA/ANALYSIS: Before any territory is eligible for annexation, the governing body of any city or town, at a hearing as provided in W.S. 15-1-405, shall find that:

- 1.) The annexation of the area is for the protection of the health, safety, and welfare of the persons residing in the area and in the city or town. **Findings:** The area to be annexed does not include any residents. Future required connections to City services in the Urban Area helps prevent overuse of the aquifer and possible contamination from septic systems. Urban densities are most appropriately served by full-time professional fire services and City police.
 - a. Including properties that are already served by some City services in the City's tax base allows for more equitable cost sharing among all City residents.
 - b. Full-time professional fire and police departments, which are available in the City, increase the potential of quicker emergency responses, which is a benefit to health, safety, and welfare.
- 2.) The urban development of the area sought to be annexed would constitute a natural, geographical, economical, and social part of the annexing city or town. **Findings:** The property is approximately 14.76% contiguous to the existing City boundary. The site is located within the PlanCheyenne comprehensive plan area, which includes the following land use designations on the future land use plan: *Public and Quasi-Public* for the visitors center; *Commercial Business* where the three truck stops, hotel, and truck repair shop are located, and *Mixed Use-Employment* where McDonalds is.
 - a. PlanCheyenne, which was adopted by the City of Cheyenne and Laramie County, contemplates urban development in this area.
 - b. Urban Development at interchanges is a common occurrence in urban areas. In addition, this area is near major transportation hubs with both the intersections of I-25 and I-80 and BNSF and UP Rail nearby. Urban development is expected near such major transportation hubs. This area is approximately 2 miles from the City's original downtown. By comparison, the City has already grown substantially further than two miles to the north and east. Balancing new investment and growth in all directions is generally desirable both economically and socially.
 - c. The City and Board of Public Utilities have plans to construct a water transmission line approximately one half mile south of the proposed annexation. This infrastructure will accommodate planned growth of the City to the south beyond the proposed annexation area.
- 3.) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to the residents of the city or town shall, within reason, be available to the area proposed to be annexed. **Findings:** The City has the capacity to serve more people and businesses with its water and sewer system. This area can be supported by City services, such as fire protection, police protection, and garbage collection. The proximity to existing urban development is an opportunity to provide City services in a fiscally responsible manner.

- a. Multiple connections to the City's sanitary sewer system have already been made within the annexation area and the properties have already agreed to be annexed via outside user agreements.
 - b. The sewer line extending to these sites was oversized in anticipation of additional development in this area to occur in the City. Annexation of these properties was anticipated when the agreements to annex were executed.
 - c. At present time, the City has the capacity to serve more people with its water and sewer system. More specifically, increasing the number of users increases efficiency and thereby keeps costs to a minimum. The proximity of this site to existing urban development increases the likelihood that maintenance of new infrastructure in this area will be feasible for the City to maintain. PlanCheyenne contemplates urban development in this area and this area is located in the 201 boundary, both of which require new development to be connected to City sewer.
- 4.) The area sought to be annexed is contiguous with the annexing city or town, or the area meets the requirements of W.S. 15-1-407. **Findings:** The property is approximately 14.76% contiguous with existing City limits.
- 5.) If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. **Findings:** Franchises are in place to serve this property.
- 6.) The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S 15-1-405 (a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date, and location of the public hearing required by W.S. 15-1-405 (a). **Findings:** The required information was sent March 1, 2011, to meet the requirement of this provision.